



Candidate Agreement

This candidate agreement (“Agreement”) is entered into on the date signed below by and between Light Speed Staffing Solutions dba Mayday Dental with its principal place of business in Walnut Creek, California, (“Recruiter”) and the party below (“Candidate”), each a “Party” and collectively the “Parties.”

Terms

1. No Employment Relationship

Candidate understands and agrees that s/he is not an employee of Recruiter. Recruiter will locate dental professionals and dental offices that may be interested in hiring Candidate and facilitate potential employment by the dental professionals of Candidate. If such match is made by Recruiter, Candidate understands that s/he is to be compensated solely by the dental professionals that hire Candidate and not by Recruiter. Candidate will not make any claims against Recruiter for workplace injuries, as Recruiter is not Candidate’s employer. Candidate understands and agrees that the only party responsible for payment of Candidate’s wages and related benefits, including workers compensation coverage and unemployment benefits, is the dental professionals that hire Candidate. Candidate warrants and represents that Candidate will not seek any compensation from Recruiter directly. If Candidate seeks such compensation, such actions will be a material breach of this Agreement. Candidate agrees that if s/he seeks such compensation in violation of this Agreement, Candidate will be responsible for all attorneys and expert fees and costs incurred by Recruiter in defending itself against such claims.

2. Timing of Payment

In the event Candidate is hired as a result of the Recruiter's efforts, Candidate agrees to comply with the policies and procedures of any dental professional that hires Candidate. Candidate will agree to be compensated on the same days and on the same terms as the dental professional's other employees, if any. Recruiter cannot guarantee payment by the dental professional and any failure by the dental professional to pay Candidate will have to be raised with the dental professional as Candidate's employer. Recruiter makes no representations or warranties concerning the dates on which Candidate will be paid by any dental professional.

3. No Guarantees

Recruiter makes no promises or guarantees regarding any referrals on behalf of Candidate. In referring assignments, Recruiter is not obligated to give any Candidate preference over any other Candidate. However, Recruiter will not discriminate against any potential Candidate based upon sex, race, sexual orientation, gender, religion, age, marital status, pregnancy status, disability, or national origin. Notwithstanding the above, the Parties hereto acknowledge that if a dental office works with individuals who speak a certain language, it may be necessary to find candidates who speak that language in order to perform the services required of them. Language skills are thus considered a bona fide occupational qualification for those specific placements and Candidates who fulfill those language skills requirements will be given priority for those assignments.

Candidate further understands that the employment with the dental professionals is at will and Candidate is not guaranteed employment for the duration of the intended assignment. Recruiter is not responsible for the payment of any wages not paid by dental professionals to Candidate. If an assignment is cancelled on short notice and Candidate is not informed of the cancellation at least two hours prior to the scheduled start time and if Candidate shows up for the assignment, Recruiter will attempt to negotiate four hours pay for Candidate. However, by taking such actions, Recruiter is not acting as Candidate's employer.

4. Candidate's Representation of Skills

Candidate, by seeing an assignment, is representing and warranting that Candidate possesses the necessary skills, experience, and education to perform the job duties of the assignment

sought. Feedback will be sought from the dental professionals who hire Candidate through a referral from Recruiter, and any negative feedback based on performance and ability will be considered by Recruiter and could negatively impact the availability of offered positions to Candidate. If Candidate has any doubts about his/her ability to perform the job functions of a given assignment, Candidate will immediately notify Recruiter so that a qualified candidate can be placed in said position and a new position sought on behalf of Candidate for which Candidate is qualified.

5. Candidate's Reporting Requirements

Candidate agrees that s/he will notify Recruiter of any assignments offered by any dental professionals with whom Recruiter has placed Candidate, whether said placement was temporary or permanent, within a 365 day period from the last day worked as a result of a referral. If Candidate is hired in January through a referral and then called back again in June by the same dental professional, such call back is deemed work related to Recruiter's referral and Candidate is required to notify Recruiter of the call back as well as any additional job opportunities, whether temporary or permanent, offered by the dental professional for the 365 days following the June call back.

Candidate shall also notify Recruiter of any permanent job offers accepted by Candidate from any dental professional with whom Recruiter has placed Candidate and for whom Candidate had performed work within the 365 days prior to hire. Candidate agrees that Candidate is required to notify Recruiter if Candidate is hired permanently by a dental professional and Candidate's rate of pay increases during the first year of permanent employment.

Candidate acknowledges that Recruiter has invested substantial time and resources in identifying, recruiting, and qualifying candidates and that Recruiter makes its money by referring Candidates to dental professionals who pay referral fees. Failure to notify Recruiter of pay increases and placements that result from Recruiter's efforts is harmful to Recruiter and damages Recruiter. Candidate agrees that any failure to report assignments offered by any dental professionals to whom Recruiter has referred Candidate is an effort to harm Recruiter and is done with intent to maliciously harm Recruiter.

Candidate is responsible for notifying Recruiter if the term of any assignment is extended or shortened. Such notification should be provided as soon as the change in assignment is known by Candidate.

6. No Direct Scheduling

Candidate understands that all assignments with dental professionals with whom Recruiter has placed Candidate must be arranged through Recruiter, even if the dental professional had information and a resume for the Candidate from a different source prior to Candidate being placed by Recruiter. If a dental professional attempts to schedule additional days after an initial assignment, Candidate must promptly notify Recruiter and advise the dental professional that time must be reserved through Recruiter. Additional assignments include working interviews, which should be reported to Recruiter. If Candidate fails to notify Recruiter of an additional assignment, such will be deemed a material breach of this Agreement. Moreover, because the cost to Recruiter is difficult to determine, the Parties agree that the minimum damages owed for any such breach is \$75 per day for each unreported day.

7. No Side Referrals

Candidate agrees not to work with dental professionals to attempt to place their colleagues or friends with such dental professionals. Instead, Candidate will refer such potential candidates to Recruiter who work with qualified potential candidates at Recruiter's discretion.

8. Right to Turn Down Assignments

Candidate may accept or reject proposed assignments in Candidate's sole discretion. A decision to turn down an assignment for any reason will be without penalty and will not affect the Candidate's eligibility for subsequent assignments. However, Candidates must not accept an assignment and then attempt to cancel less than 24 hours in advance. Candidate acknowledges that cancellations made less than one business day before the start of an assignment unfairly prejudices both Recruiter and the dental professionals who are relying upon Candidate to show up for an assignment.

9. Professionalism

Candidates are expected to adhere to the highest standards of professionalism. Candidate should show up to the job assignments on time every time. If a Candidate reports late to a job assignment, Recruiter may choose to stop seeking assignments for Candidate. However, if Candidate can show through sufficient evidence, in Recruiter's sole discretion, that the tardiness or absence was reasonable, Recruiter may choose to continue to seek assignments for Candidate. Notwithstanding Recruiter's decision to stop seeking assignments for Candidate, Candidate's obligation to report additional work with dental professionals with whom Recruiter placed Candidate as described in Sections 5 and 6 above remains in full force and effect.

10. Discrimination

Candidates may not discriminate in their job placements. Requests to be placed or not be placed with a dental professional based upon the professional's sex, race, sexual orientation, gender, religion, age, marital status, pregnancy status, disability, or national origin. Any such requests cannot, and will not, be accommodated by Recruiter.

11. Recruiter Has No Employer Liability

Recruiter is not Candidate's employer. As such, Recruiter has no liability for any claims related to employment issues including, but not limited to, Candidate's claims of injury while working for the dental professionals with whom Candidate may be placed, any failure to pay in full or timeliness of pay, claims of emotional distress related to employment by any dental professional, and overtime pay or disputes.

12. Other Provisions

A. Right to Refuse Service. Recruiter has the right to refuse service to any potential candidate provided such refusal is not be based upon discriminatory grounds.

B. Governing Law. This Agreement is entered into in Walnut Creek, California. The Agreement shall be governed by California law, without to conflict of laws. The Parties consent to and select state and federal courts in California as the jurisdiction and venue to resolve any disputes arising from or related to this Agreement.

C. Integrated Agreement. This Agreement constitutes the complete agreement between the Parties and supersedes any and all prior understandings, conversations, and proposals, and may not be amended, except by written agreement executed by the Parties.

D. Relationship. The relationship between the parties to this contract is that of independent parties. Nothing contained herein is intended to create an employment relationship or an agency relationship between these Parties. Neither Party may assign their rights or responsibilities under this contract without the expressed written consent of the other.

E. Severability. If any provision of this Agreement is held to be invalid or unenforceable for any reason, the remaining provisions of this Agreement will continue to be valid and enforceable. If a court or any trier of fact finds that any provision of this Agreement is invalid or unenforceable, but that by limiting such provision this Agreement would become valid and enforceable, then such provision will be deemed to be written, construed, and enforced as so limited.

F. Non-Waiver. Candidate agrees that the failure of Recruiter to take action under this Agreement or the waiver of a breach of this Agreement shall not affect Recruiter's rights to require performance hereunder or constitute a waiver of any subsequent breach.

G. Headings. The paragraph headings in this Agreement are for purposes of convenience only and shall not limit or otherwise affect any of the terms hereof.

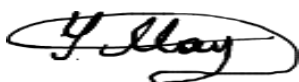
H. Attorney's Fees and Costs. The Parties agree that in the event of a dispute arising under or related in any way to this Agreement, the non-prevailing party shall pay all costs and expenses, including reasonable attorneys' fees, that may arise or accrue from enforcing this Agreement or in pursuing any remedy provided by applicable law whether such remedy is pursued or sought by mediation, arbitration, the filing of a lawsuit, and appeal, or otherwise.

I. No Construction Against Drafters. No provisions of this Agreement shall be constructed against or interpreted to the disadvantage of any Party by any court by reason of such Party's having or being deemed to have drafted, prepared or imposed such provision.

J. Execution. This Agreement may be executed in two or more counterparts, each of which will be deemed an original, but all of which together shall constitute one and the same instrument. Once signed, both parties agree any reproduction of the Agreement made by reliable means (e.g., photocopy, electronic signature, photo, scan, or fax) is considered an original.

Light Speed Staffing Solutions dba Mayday
Dental

By: _____



Print Name: _Yana Mayfield

Title: _CEO

By: _____

Print Name:

Title: _____

Dated: _____

Dated: _____